

Amendment No. 1 to HB1125

White
Signature of Sponsor

AMEND Senate Bill No. 602*

House Bill No. 1125

by deleting all language after the enacting clause and substituting instead the following:

SECTION 1. Tennessee Code Annotated, Section 49-1-302(d)(2)(B), is amended by adding the following as a new subdivision:

() The department shall develop guidelines and criteria for determining how long a student must have been present in a teacher's classroom before the student's record is attributable to the teacher; provided, that for teachers who teach a course for which a Tennessee comprehensive assessment program test is administered, a student must have been present in the teacher's classroom for one hundred fifty (150) days of classroom instruction, or seventy-five (75) days of classroom instruction if the school is on a block schedule, before the student's record is attributable to the teacher.

SECTION 2. Tennessee Code Annotated, Title 49, Chapter 5, Part 7, is amended by adding the following as a new section:

(a) An LEA or public charter school may compensate the estate of a teacher who, on the teacher's death, was in the employ of the LEA or public charter school for the teacher's unused and accrued annual and sick leave in the same manner that the estates of deceased state employees are compensated pursuant to § 8-50-808.

(b) A teacher may designate a beneficiary to receive payment for accrued annual and sick leave upon the teacher's death. Unless a teacher designates differently, the beneficiary is the same as the beneficiary designated for receipt of retirement benefits with the Tennessee consolidated retirement system.

SECTION 3. This act takes effect upon becoming a law, the public welfare requiring it.